

1

IDENTITY AND ROLE FIREWALL

TIMELINE

- CVC Act 2003: statutory vigilance, supervision and advice
- CBI Resolution 1 Apr 1963: executive-created organisation
- DSPE Act 1946: statutory police establishment and police power
- CVO prevents/coordinates; prosecutor prosecutes; court decides guilt
- Answer line: legal source determines legal power.

2

CHRONOLOGY

INSTITUTION

- CORE SPINE
- 1941 SPE -> 1946 DSPE Act -> 1963 CBI Resolution
 - 1964 CVC Resolution -> 1997 Vineet Narain
 - 1998 CVC Ordinance -> 1999 Bill process -> CVC Act 2003

- LIMIT / CONSEQUENCE
- Lokpal amendments operative 16 Jan 2014
 - Director-extension amendment operative 14 Nov 2021

3

CVC DESIGN: SECTIONS 3 TO 6

POWER / LIMIT



Appointment: President <- PM + Home Minister + Lok Sabha LoP

Term: 4 years or 65; VC-to-CVC aggregate <=4 years

Removal: Supreme Court inquiry route + separate direct grounds

4

CVC SECTION 8

LEGAL SOURCE

Superintend DSPE PC Act investigations

Directions allowed; particular-case manner/result dictation barred

Inquiry/reference/covered-complaint routes

Review investigation + prosecution-sanction progress

Advice + vigilance administration; no policing or conviction

5

CVO, ADVICE, REPORTING, PIDPI

TIMELINE

- CVO: preventive vigilance, complaint scrutiny, discipline liaison
- Section 17: written reasons when CVC advice is rejected
- Section 14: annual report + separate DSPE part -> Parliament
- PIDPI 21 Apr 2004: protected written disclosure to CVC
- Confidential identity != anonymous protected complaint

6

CBI ORGANISATION / DSPE POWER

INSTITUTION

CORE SPINE

- Stable work: anti-corruption | economic offences | special crimes
- Support: forensics, prosecution, coordination, INTERPOL NCB
- Section 2: Union Territory police-power baseline

LIMIT / CONSEQUENCE

- Section 3: Central notification of offences/classes
- Organisation and importance never substitute for jurisdiction

DSPE SUPERINTENDENCE AND CONSENT

POWER / LIMIT

Section 4: CVC for PC Act | Centre otherwise | Director administers

Section 5: Central extension order to State area

Section 6: State consent for ordinary exercise in State

General consent: standing/defined | specific: named case/facts

Sequence: notified offence -> extension -> consent

WITHDRAWAL AND COURT DIRECTIONS

LEGAL SOURCE

Kazi Lhendup Dorji: validly begun investigation may continue

New cases after withdrawal need fresh authority ordinarily

Fertico: fact-specific, no universal later-consent cure

CPDR: HC Art.226 / SC Art.32 can order CBI without consent

Constitutional route is exceptional, cautious and not Union self-help

VINEET NARAIN / 6A / 17A / 19

TIMELINE

- Vineet: statutory CVC, oversight, 2-year floor, then CVC-led panel
- Single Directive struck down
- Subramanian Swamy 2014: former DSPE 6A invalid under Art.14
- PC Act 17A: decision-linked pre-investigation approval + trap exception
- PC Act 19: sanction before court cognizance; neither decides guilt

DIRECTOR, SENIOR POSTS AND LOKPAL

10

DIRECTOR, SENIOR POSTS AND LOKPAL

INSTITUTION

CORE SPINE

- 4A: PM + LoP/largest opposition leader + CJI/SC nominee
- 4B: 2-year floor; yearly reasoned extension; 5-year aggregate ceiling
- Alok Verma: transfer-like divestment needs committee process

LIMIT / CONSEQUENCE

- 4C CVC-led SP+ committee | 4BA Director of Prosecution
- Lokpal 20/25: CVC route + referred-DSPE superintendence

11

CASE LIFECYCLE AND ACCOUNTABILITY

POWER / LIMIT

source/complaint -> jurisdiction -> PE or FIR/Regular Case

evidence + forensics -> charge sheet or closure report

17A where attracted -> 19 sanction where required -> cognizance

prosecution presents; court tries and determines guilt

Thommandru: PE not mandatory before every corruption FIR

12

PROBLEMS, REFORMS AND PYQ VERDICT

LEGAL SOURCE

Risks: political control, consent conflict, manpower/forensics delay

Reforms: clear law, professional cadre, audit, consent protocols

CVC: stronger CVOs, reasoned follow-up, sanction tracking, reporting

2021 PYQ: ss.5-6 -> Kazi -> Arts.32/226
CPDR -> federal balance

Verdict: operational insulation + legal answerability